

Your mistaken-identity filing packet

Prepared for Alexandria Marie Example-Sampleton. SYNTHETIC EXAMPLE: not an actual person or case. Route: petition.

File in the court where the charge was last pending: St. Louis County, Judicial Circuit 21, municipal court, Division 1. Prior case: SYNTH-MUNI-26-002. Do not use an unrelated court or a case-number guess. The sample case number is not a usable court identifier.

This CR301 route addresses charges brought under your identity because someone used your identifying information or because you were mistaken for someone else, with all resulting charges dismissed or a not-guilty finding. It is not ordinary arrest expungement, conviction expungement, or the separate identity-theft record-correction procedure under section 575.120.

For a dismissal involving stolen or mistaken identity, first ask the clerk whether the prosecutor or judicial officer provided notice and whether the court already entered the automatic expungement order under section 610.145.1(2). Do not file a duplicate petition merely because the process is called automatic. If that route has not resolved the matter, review the petition route with the clerk.

Included: CR301 petition; FI-05 confidential filing sheet because a new case is selected; CR311 proposed judgment because the court requests one; these instructions. FI-05 includes all four official pages and extra copies of its party page when needed.

CR311 is only an unsigned proposed order. Printed court language is not a decision. No judge signature, judicial date, finding, hearing event, service return or notarial act has been supplied. Do not sign or date the order.

Check, complete and file

Compare CR301 against the docket, dismissal entry or acquittal judgment, arrest record and your identification. Request copies from the clerk who holds the case. These records help establish the facts; do not invent an arrest citation, social security number, license number or court identifier. Bring relevant records to the hearing and follow the court's directions about filing attachments.

The principal case-detail fields have been supplied in this example. Confirm each against the actual records before signing.

Optional or unavailable identifiers remain blank, not zero, NONE or guessed text. The arrest-citation field says "if known." Supply other reasonably available personal identifiers as directed by the form and clerk. Race and sex are not inferred. Unsupported values are not coerced into a checkbox. Verify privacy/redaction handling before filing a form containing sensitive identifiers.

Name all known agencies or officials holding affected entries. Check respondent names against the records; obtain their correct addresses from the clerk or agency where service requires them. FI-05 is confidential: give it to the clerk through the designated confidential channel, not as a public exhibit. Complete reasonably available party details and confirm the blank case-type and party-type codes with the clerk before filing. The unredacted-document-attached box stays unchecked unless that document is actually attached.

Use the clerk's confirmed filing location and method for the court identified on page 1. Ask whether this proceeds under the original case number or a new filing, whether FI-05 or a proposed order is expected, how many copies to supply, and how notice/service is handled locally. Leave new case assignment, ORI, judge assignment and file-stamp spaces for the clerk. No mailing address or e-filing access is assumed.

Review CR301's statements before personally signing its penalty-of-perjury declaration. This held CR301 has no notarial jurat. Do not add a fabricated notarization or sign for anyone else. Keep a filed copy and proof of any delivery you actually make. These instructions are not a certificate of service.

Notice, hearing and follow-through

Section 610.145.1(1) provides notice to the prosecuting attorney and a court hearing. Ask the clerk for the actual hearing date, notice procedure and any additional steps the court requires. The CR301 clerk instruction directs notice to the prosecuting attorney. Do not fill a notice date or claim service occurred merely because the packet was prepared.

Section 610.145.3 says expungement costs under this chapter are not taxed against the eligible person. Do not import ordinary conviction-expungement fees, waiting periods or fingerprint requirements into this route. If a charge is requested, ask the clerk to identify its basis and explain section 610.145.3. GN10 is not an automatic component of this family; no fees-paid or indigency declaration is fabricated.

Bring the actual dismissal/acquittal record and any reliable material showing the identity error. The judge, not this packet, determines entitlement. For prosecutor opposition, contested identity evidence, a denial, appeal or a need to litigate further, stop the automated self-help litigation steps and take the packet, docket, notices and evidence to legal aid or counsel. General preparation and locating legal help may continue.

After an order is entered, obtain a copy and ask the clerk which named officials and agencies received it. Verify corrections with each relevant record holder. Report any remaining specific entry with a copy of the actual order; do not treat the proposed CR311 as an issued order. Section 610.145 also addresses related administrative records. Keep your copy securely.

Forms in this packet: CR301 and, when selected, CR311 (OSCA 07-17), plus FI-05 (SJRC 04-23 with a 07-23 case-type page). Ask the clerk whether a newer edition or a local filing instruction applies before submitting. The official authorities below explain the route; the packet itself is not a court ruling.

Authority: <https://revisor.mo.gov/main/OneSection.aspx?section=610.145>

Official form index: <https://www.16thcircuit.org/miscellaneous-forms>

After an actual expungement order

Start only after the court has entered an expungement order under section 610.145. Obtain the actual order and check which charge and records it covers. A proposed CR311, this guide, or a dismissal by itself is not proof that an expungement order was entered. These steps also apply to an order entered through the court-notice route.

Court and agency notice: the clerk notifies the state and local agencies of the order. Ask the clerk which affected record holders were notified; do not certify that delivery occurred without confirmation. Keep the order and actual delivery responses. Compare each affected record with the order and identify any entry that remains incorrect.

Driver records, only if affected: contact the Missouri Department of Revenue using the contact on your driver record or its official driver-licensing channel. Give it the issued order and identify the related entries, points, suspension or revocation. Section 610.145.4 requires removal of those entries and reversal of administrative actions resulting from the expunged charge or conviction. Request the certified corrected driver history at no cost. If that charge or conviction caused a license suspension or revocation, request reinstatement at no cost. Verify the corrected history and actual license status; do not assume unrelated restrictions disappeared or drive before reinstatement is confirmed.

Other affected agencies, only if applicable: identify any resulting administrative action by the Department of Corrections or another state or local agency. Provide the actual order, identify the action and ask the responsible agency to confirm record expungement and reversal under section 610.145.5. The normal fee for reinstating a license or privilege resulting under this section is waived. Ask the agency to apply that waiver where it applies; this is not a blanket refund of every fee ever paid. Keep its written response and verify the resulting record or license status.

Insurance, only if an additional premium was charged because of insurance points resulting from the expunged charge or conviction: notify the insurer of the actual expungement and provide the order for verification. Request the additional premiums for the three-year period immediately before the court entered the expungement, not all premiums or a period measured from today. Identify the affected policy and supply available bills or premium notices. Ask the insurer to verify the expungement, calculate the applicable additional premiums and explain its response. No notice, verification, payment or refund amount is supplied or guaranteed by this packet. Section 610.145.6 supplies the conditional refund obligation.

Track what actually happens: keep dates of your real requests, delivery records, agency confirmations and any insurer response. Follow up on a specific remaining error with the order. For a disputed record, refusal, refund calculation or further litigation, take these materials to legal aid or counsel; do not fabricate completion or treat this guide as an enforcement order.

Authority: Missouri Revised Statutes section 610.145.3-.6.
<https://revisor.mo.gov/main/OneSection.aspx?section=610.145>